

Tamil Nadu Local Authorities Finance Act, 1961

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State of Tamilnadu- Act

Tamil Nadu Local Authorities Finance Act, 1961

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Tamil Nadu Local Authorities Finance Act, 1961

Act 52 of 1961

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Tamil Nadu Local Authorities Finance Act, 1961

(Tamil Nadu Act

52 of 1961

)

Statement of Objects and Reasons - Tamil Nadu Entertainments Tax and Local Authorities Finance (Amendment) Act, 1970 (Tamil Nadu Act 16 of 1970) - Section 4-A of the Tamil Nadu Entertainments Tax Act, 1939 (Tamil Nadu Act X of 1939), provides for the levy of an additional tax on the cinematograph exhibitions at Rs. 2-50, Rs. 2-00, Rs. 1-50 or Re. 1-00 according as the exhibition is in the city of Madras, specially notified Municipality, other Municipality or elsewhere. In order to augment the resources of the State, the Government have decided to enhance the rates of show-tax on cinematograph shows, to double the rates now levied.

2. Sub-section (l)(b) of section 3 of the Tamil Nadu Local Authorities Finance Act, 1961 (Tamil Nadu Act

52 of 1961

) provides for the levy of tax as surcharge on each show of cinematograph exhibition held within the local limits of the local authority, at such rate not exceeding three times the rate of tax levied under section 4-A of the Tamil Nadu Entertainments Tax Act, 1939 for that show as the local authority may determine. Representations have been made to the Government that the levy of surcharged three times the enhanced rate of show-tax as now proposed would cast a very heavy burden on the theatre owners. The Government have, therefore, decided that the local authorities concerned should be enabled to levy surcharge at a rate not exceeding one and a half times the show tax under section 4-A of the Tamil Nadu Entertainments Tax Act, 1939 as proposed to be revised.

3. Under sub-section (3) of section 3 of the Tamil Nadu Local Authorities Finance Act, 1961 (Tamil Nadu Act

52 of 1961

), any alteration in the rate of surcharge can be given effect to only from the beginning of the next financial year. In view of this provision, the local authorities will not be in a position to give effect to the modification in the rate of surcharge on show-tax, during the years 1970-71. In order to obviate this difficulty, the Government have decided to omit sub-section (3) of section 3 of the said Act and to specifically provide for the continuance of the resolution already passed by the local authorities, till a fresh resolution under the Act as amended has taken effect.

4. The Bill seeks to achieve the above objects.

Published in Part IV-Section 3 of the Tamil Nadu Government Gazette Extraordinary, dated the 4th April 1970.

Statement of Objects and Reasons - Tamil Nadu Local Authorities Finance (Amendment) Act, 1973 (Tamil Nadu Act 29 of 1973). - In order to facilitate the transaction involving fractions of a rupee, it is proposed to insert a new section 4-A after section 4, in the Tamil Nadu Local Authorities Finance Act, 1961 (Tamil Nadu Act

52 of 1961

), for rounding off to the nearest rupee, of the amount of surcharge, fee, penalty, fine or any other sum payable and the amount of refund due, under the said Act.

2. The Bill seeks to achieve the above object.

Published in Part IV-Section 3, page 210 of the Tamil Nadu Government Gazette Extraordinary, dated the 3rd August 1973.

Statement Of Objects And Reasons - Tamil Nadu Local Authorities Finance (Second Amendment) Act, 1973 (Tamil Nadu Act 42 of 1973)2. - Under section 5 of the Tamil Nadu Local Authorities Finance Act, 1961 (Tamil Nadu Act

52 of 1961

), any local authority with the previous sanction of the Government may exempt, admissions to any entertainment or class of entertainments and shows of any cinematograph exhibition or class of exhibitions from liability to the tax payable under clauses (a) and (b), respectively, of sub-section (1) of section 6 of the Act. It has now been decided to amend section 5 of the said Act so as to empower the Government also to grant similar exemptions.

2. The Bill seeks to give effect to the above decision.

Published in Part IV-Section 3, page 304 of the Tamil Nadu Government Gazette Extraordinary, dated the 27th November 1973.

Statement of Objects and Reasons - Tamil Nadu Entertainments Tax and Local Authorities Finance (Amendment) Act, 1974 (Tamil Nadu Act 38 of 1974). - With a view to mobilise additional resources, the Government have decided to replace the present rates of show tax payable under section 4-A of the Tamil Nadu Entertainments Tax Act, 1939 (Tamil Nadu Act X of 1939) and the surcharge on show tax payable under clause (b) of sub-section (1) of section 3 of the Tamil Nadu Local Authorities Finance Act, 1961 (Tamil Nadu Act

52 of 1961

) by a consolidated rate of show tax. Accordingly, it is proposed to amend the Tamil Nadu Entertainments Tax Act, 1939 (Tamil Nadu Act X of 1939) and the Tamil Nadu Local Authorities Finance Act, 1961 (Tamil Nadu Act

52 of 1961

) suitably.

2. The Bill seeks to achieve the above object.

Published in Part IV-Section 1, of the Tamil Nadu Government Gazette Extraordinary, dated the 16th August 1974.

Statement of Objects and Reasons - Tamil Nadu Entertainments Tax Act and Local Authorities Finance (Amendment) Act, 1978 (Tamil Nadu Act 5 of 1978). - The Film Industry Enquiry Committee, constituted by the Government in the year 1975, recommended, as a measure of preventing evasion of tax by proprietors of cinematograph exhibitions, the

compulsory levy of a fixed tax per show in lieu of the existing taxes levied under the Tamil Nadu Entertainments Tax Act, 1939 (Tamil Nadu Act X of 1939) and the Tamil Nadu Local Authorities Finance Act, 1961 (Tamil Nadu Act 52 of 1961

). The film industry also repeatedly represented for the introduction for a scheme for the composition of the taxes.

2. The Government accordingly decided to introduce a gross levy per show based on the gross collection capacity of the theatres for the temporary (touring) theatres and the permanent and semi-permanent theatres in Municipalities, Grades II and III, in Selection Grade and other Panchayat towns and in Panchayat villages. The tax payable was proposed to be fixed as a percentage ranging from 20 per cent to 27-1/2 per cent of the gross collection capacity of the theatre for every show conducted. The Government also decided to provide for an option to the proprietors of cinematograph exhibitions to compound the above tax by paying at a different percentage ranging from 15 per cent to 22-1/2 per cent of the gross collection capacity of the theatre for a fixed number of shows ranging from 14 to 20 shows per week irrespective of the number of shows conducted in a week.

3. The Government also decided to amplify the definition of show in the Act and also to make some changes in the penalties provided in the Tamil Nadu Entertainments Tax Act, 1939 (Tamil Nadu Act X of 1939).

4. The Government, therefore, decided to amend the Tamil Nadu Entertainments Tax Act, 1939 (Tamil Nadu Act X of 1939) and the Tamil Nadu Local Authorities finance Act, 1961 (Tamil Nadu Act 52 of 1961

), suitably. Accordingly, the Tamil Nadu Entertainments Tax and Local Authorities Finance (Amendment) Ordinance, 1977 (Tamil Nadu Ordinance 5 of 1977), was promulgated.

5. The Bill seeks to replace the above Ordinance.

Published in Part IV-Section 1, of the Fort. St. George Gazette Extraordinary, dated the 6th January 1978.

Statement of Objects and Reasons - Tamil Nadu Entertainments Tax and Local Authorities Finance (Amendment) Act, 1979 (Tamil Nadu Act 51 of 1979). - According to section 3(9) of Tamil Nadu Entertainments Tax Act, 1939 (Tamil Nadu Act X of 1939), the term 'proprietor' in relation to any entertainment includes any person responsible for the management thereof. It is proposed to amend the said term 'proprietor', so as to include the State Government, any local authority or any person responsible for the management thereof.

2. The temporary (touring) theatres in the areas of Second and Third Grade Municipalities were eligible to conduct 17 shows including 3 matinee shows in a week, whereas they had to pay compounded tax for 16 shows per week. Consequent on the ban of the matinee shows since imposed on the temporary (touring) theatres in the above areas, they would be able to conduct only 14 shows, whereas they will have to pay compounded tax for 16 shows per week. It is proposed to amend section 5-B of the Act, so as to provide for payment of compounded tax at a fixed percentage of the gross collection capacity applicable to these theatres for 14 shows instead of 16 specified in the Act.

3. It has also been proposed to amend the provisions of the said Act so as to demand security for the payment of show tax and additional surcharge on entertainments tax and show tax also besides entertainments tax. The provisions of the Tamil Nadu Local Authorities Finance Act, 1961 (Tamil Nadu Act 52 of 1961

) have also been proposed to be amended, so as to demand security for payment of surcharges on entertainments tax and show tax under the Act.

4. It has also been proposed to amend the said Acts, so as to vest the State Government with power to publish in newspapers, the names of defaulters of entertainments tax and surcharge thereon, subject to certain conditions as in the case of sales tax and income-tax defaulters.

5. Under sub-section (1) of section 16-A of the said Tamil Nadu Entertainments Tax Act, 1939, the Government have issued certain notifications amending the Schedules to the said Act. Under sub-section (2) of the said section 16-A, a Bill has to be introduced replacing the said notifications in the present session of the Legislature.

6. The Bill seeks to achieve the above objects.

Published in Part IV-Section 1, of the Tamil Nadu Government George Gazette Extraordinary, dated the 23rd November 1979.

Statement of Objects and Reasons - Tamil Nadu Entertainments Tax and Local Authorities Finance (Amendment) Act, 1984 (Tamil Nadu Act 25 of 1984). - The provisions of the Tamil Nadu Entertainments Tax Act, 1939 (Tamil Nadu Act X of 1939) have been made applicable to the exhibition of films on Television Screen through Video Cassette Recorders and the definition of "entertainment" in the said Act has also been amplified so as to include exhibitions of films on

Television Screen through Video Cassette Recorders. It has been decided to amend the said Act for the following purposes, namely:-

- (i) to levy a tax on each payment for admission to the exhibitions of cinematograph films on Television Screen through Video Cassette Recorders, at the rate of fifty per cent of the gross payment for admission inclusive of the amount of tax;
- (ii) in lieu of the above tax mentioned in item (i) above, to levy a tax for Video Cassette Recorder films exhibited at the various rates applicable to permanent and semi-permanent theatres as specified in the Table under sub-section (1) of section 5-A of the Act;
- (iii) to provide for certain other consequential amendments to the Act.

2. It has also been decided to amend the Tamil Nadu Local Authorities Finance Act, 1961 (Tamil Nadu Act 52 of 1961

), so as to provide therein that no surcharge under the said Act shall be levied for the exhibition of cinematograph films on Television Screens through Video Cassette Recorders.

3. The Bill seeks to give effect to the above decisions.

Published in Part IV-Section 1, of the Tamil Nadu Government Gazette Extraordinary, dated the 31st March 1984.

Statement of Objects and Reasons - Tamil Nadu Entertainments Tax and Local Authorities Finance (Amendment) Act, 1989 (Tamil Nadu Act 40 of 1989). - The Government have decided to consolidate the levy of tax on payment for admission to cinematograph exhibition,' additional tax on cinematograph exhibition (show tax), additional surcharge on tax on payment for admission to cinematograph exhibition and additional surcharge on show tax under the Tamil Nadu Entertainments Tax Act, 1939 (Tamil Nadu Act X of 1939) and the levy of taxes as surcharge on payment for admission to cinematograph exhibition and on cinematograph exhibition under the Tamil Nadu Local Authorities Finance Act, 1961 (Tamil Nadu Act

52 of 1961

) into a single tax at a rate of forty percent of gross payment for admission to cinematograph exhibition inclusive on the amount of tax.

2. It has also been decided to -

- (i) reduce the percentage of the rate of tax levied on cinematograph exhibitions;
- (ii) extend the scheme of levy of tax under section 4 of Tamil Nadu Act X of 1939 to theatres, other than temporary (touring) and open air theatres, located in the area within five kilometres from the outer peripheral limits of the area where the said section 4 is in force;
- (iii) share the proceeds of the entertainments tax from theatres covered by the scheme of levy of tax on payment for admission to cinematograph exhibitions in the ratio of 30:70 between the Government and the local body concerned; and
- (iv) include Pudukkottai in the list of Selection Grade Municipality in Part A and Coonoor in First Grade Municipality in Part B of Schedule I to Tamil Nadu Act X of 1939.

Accordingly the Tamil Nadu Entertainments Tax and Local Authorities Finance (Amendment) Ordinance, 1989 was promulgated by the Governor on the 29th June 1989 to amend relevant provisions of the Tamil Nadu Entertainments Tax Act, 1939 and the Tamil Nadu Local Authorities Finance Act, 1961.

3. The Bill seeks to replace the said Ordinance.

Published in Part IV-Section 1, of the Tamil Nadu Government Gazette Extraordinary, dated the 31st October 1989.

Received the assent of the Governor on the 16th January 1962 and first published in the Fort St. George Gazette, dated the 24th January 1962.

An Act to enable local authorities to augment their finances by empowering them to levy to certain taxes.

Whereas it is expedient to enable the local authorities to augment their finances by empowering them to levy certain taxes;

Be it enacted in the Twelfth Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Local Authorities Finance Act, 1961.

(2)

It shall come into force on such date as the Government may, by notification, appoint.

2.

Definition.

- In this Act, unless the context otherwise requires,-

(a)

"Entertainments Tax Act" means the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Entertainments Tax Act, 1939 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act X of 1939);

(b)

"Government" means the State Government;

(c)

"local authority" means-

(i)

the Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

, or

(ii)

a municipal council or a township committee constituted under the [Tamil Nadu]

[Substituted for the word 'Madras ' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

District Municipalities Act, 1920 [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act V of 1920), or

(iii)

a township committee constituted under the Mettur Township Act, 1940 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XI of 1940)] or the Courtallam Township Act, 1954 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XVI of 1954)] or the Bhavanisagar Township Act, 1954 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XXV of 1954)], or

(iv)

a panchayat union council constituted under any law for the time being in force;

(d)

"year" means the financial year;

(e)

all words and expressions used, but not defined in this Act and defined in the Entertainments Tax Act shall, in relation to a tax leviable under section 3, have the meanings respectively assigned to them in that Act.

3.

Levy of taxes as surcharge on entertainments tax and on tax on cinematograph exhibitions.

(1)

Any local authority may levy, in the form of a surcharge,-

(a)

a tax on each payment for admission to any entertainment held within the local limits of the local authority at such a rate, not exceeding the rate of tax levied under section 4 of the Entertainments Tax Act for that payment, as the local authority may determine;

(b)

a tax on each show of cinematograph exhibition held within the local limits of the local authority at such rate not exceeding [one and a half]

[Substituted for the words 'three times' by section 3(1) of the Tamil Nadu Entertainments Tax and Local Authorities Finance (Amendment) Act, 1970 (Tamil Nadu Act 16 of 1970), which was deemed to have come into force on the 1st April 1970.]

the rate of tax levied under section 4-A of the Entertainments Tax Act for that show as the local authority may determine:

[Provided that where, in case the proprietor of a cinematograph exhibition held in the theatres specified in column (2) of the table under section 5-A or 5-B of the Entertainments Tax Act and located in the local areas specified in the corresponding entry in column (1) of the said table pays, tax under section 5-A or 5-B, as the case may be, of that Act, no surcharge shall be levied under this section by the local authority concerned.] [[The following proviso which was added by section 3 of the Tamil Nadu Entertainments Tax and Local Authorities Finance (Amendment) Act, 1974 (Tamil Nadu Act 38 of 1974) was omitted by section 3 of the Tamil Nadu Entertainments Tax and Local Authorities Finance (Amendment) Act, 1975 (Tamil Nadu Act 32 of 1975), which was deemed to have come into force on the 21st July 1975:-

'Provided that where in any case the proprietor of a cinematograph exhibition pay tax at the compounded rates specified in section 5-A of the Entertainments Tax Act, no surcharge shall be levied under this section by the local authority concerned.'

The present proviso was added by section 3 of the Tamil Nadu Entertainments Tax and Local Authorities Finance (Amendment) Act, 1978 (Tamil Nadu Act 5 of 1978), which was deemed to have come into force on the 26th December 1977.]]

(2)

Any resolution of a local authority determining to levy a tax under subsection (1) shall specify the date from which it shall be levied.

(3)

[xxx] [[The following sub-section was omitted by section 3(2) of the Tamil Nadu Entertainments Tax and Local Authorities Finance (Amendment) Act, 1970 (Tamil Nadu Act 16 of 1970), which was deemed to have come into force on the 1st April 1970:-

'(3) Where any resolution under this section has taken effect for a particular year, no proposals to alter the rate or date fixed in such resolution so far as that year is concerned shall be taken into consideration by the local authority concerned. If any proprietor of a cinematograph exhibition was paying tax at the rates specified in section 5-A of the Tamil Nadu Entertainments Tax Act, 1939 (Tamil Nadu Act X of 1939) as in force immediately before the 21st July 1975, such proprietor shall, with effect on and from the said date, be liable to pay taxes in accordance with the provisions of that Act and of the Tamil Nadu Local Authorities Finance Act, 1961 (Tamil Nadu Act 52 of 1961

) as amended by Tamil Nadu Act 32 of 1975.]]

(4)

Any resolution abolishing an existing tax levied under sub-section (1) or reducing the rate of such tax shall not be carried into effect without the sanction of the Government.

(5)

When local authority shall have determined to levy a tax under subsection (1) for the first time or at a new rate, the local authority shall forthwith publish a notice in such manner as may be prescribed, specifying the rate at which and the date from which such tax shall be levied.

4.

Tax under section 3 to be assessed and collected by the Government.

(1)

Any tax payable under section 3 shall be assessed and collect by the Government in the manner provided in sub-section (2).

(2)

The authorities for the time being empowered to assess, collect and enforce payment of any tax under the Entertainments Tax Act shall, subject to any rules made under this Act, assess, collect and enforce payment of any tax payable under clause (a), or clause (b) of sub-section (1) of section 3 (including any penalty payable in respect thereof) in the same manner as the tax under section 4 or section 4-A, as the case may be, of the Entertainments Tax Act is assessed, paid and collected; and for this purpose they may exercise all or any of the powers they have under the Entertainments Tax Act; and the provisions of that Act including the provisions relating to composition of tax, returns, appeals, revisions, offences, penalties and the compounding of offences, shall apply accordingly.

(3)

Notwithstanding anything contained in sub-section (2), the proceeds in any year of any tax so collected shall be paid to the local authority concerned after deducting towards the expenses incurred by the Government such percentage of the proceeds as the Government may fix.

(4)

[The person liable to pay the tax under section 3 shall, in addition to the payment of security mentioned in sub-section (1-A) of section 6 of the Entertainments Tax Act, also give security up to an amount and in a manner approved by the Government for the payment of the tax due under section 3.]

[Added by section 3(1) of the Tamil Nadu Entertainments Tax and Local Authorities Finance (Amendment) Act,1979 (Tamil Nadu Act 51 of 1979).]

4A.

[Rounding off of surcharge on entertainments tax and on tax on cinematograph exhibitions, fees, penalty, etc.

[Inserted by section 2 of the Tamil Nadu Local Authorities Finance (Amendment)Act,1973 (Tamil Nadu Act 29 of 1973).]

- The amount of surcharge, fee, penalty, fine or any other sum payable, and the amount of refund due, under the provisions of this Act shall be rounded off to the nearest rupee and, for this purpose, where such amount contains a part of a rupee consisting of paise, then, if such part, is fifty paise or more, it shall be increased to one rupee and if such part is less than fifty paise, it shall be ignored.]

4B.

[Publication of information respecting assesseees.

[Inserted by section 3(2) of the Tamil Nadu Entertainments Tax and Local Authorities Finance (Amendment)Act,1979 (Tamil Nadu Act 51 of 1979).]

(1)

If the Government are of opinion that it is necessary or expedient in the public interest to publish the names of any assesseees and any other particulars relating to any proceedings under this Act in respect of such assesseees, they may, subject to such conditions as may be prescribed, cause to be published such names and particulars in such manner as they think fit.

(2)

No publication under this section shall be made in relation to any penalty imposed, or any conviction for any offence connected with any proceedings under this Act, until the time for presenting an appeal or a revision, as the case may be, has expired without an appeal or revision having been presented or the appeal or revision, if presented, has been disposed of.

Explanation. - In the case of a firm, company or other association of persons, the names of the partners of the firm, directors, managing agents, secretaries and treasurers, or managers of the company, or the members of the association, as the case may be, may also be published if, in the opinion of the Government, the circumstances of the case justify it.]

5.

Power to exempt.

- Notwithstanding anything contained in this Act, [the Government, or any local authority, with the previous sanction of the Government, may exempt]

[Substituted for the expression, 'any local authority may, with the previous sanction of the Government, exempt' by section 2 of the Tamil Nadu Local Authorities Finance (Second Amendment) Act, 1973 (Tamil Nadu Act 42 of 1973).]

-

(a)

admissions to any entertainment or class of entertainments from liability to the tax payable under clause (a) of sub-section (1) of section 3;

(b)

shows of any cinematograph exhibition or class of exhibitions from liability to the tax payable under clause (b) of sub-section (1) of section 3.

6.

Other laws not affected.

- The provisions of this Act are in addition to, and not in derogation of, the Entertainments Tax Act or any other law for the time being in force.

7.

[The amendment made by this section has been already incorporated in the principal Act, namely, the Chennai City Municipal Corporation Act, 1919 (Tamil Nadu Act IV of 1919)].

8.

Power to make rules.

(1)

The Government may make rules for the purpose of carrying out the provisions of this Act.

(2)

All rules made under this Act shall be published in the [Fort St. George Gazette]

[Now the Tamil Nadu Government Gazette.]

and unless they are expressed to come into force on a particular day, shall come into force on the day on which they are published.

(3)

Every rule made under this Act shall, as soon as possible after it is made, be placed on the table of [the Legislative Assembly]

[Substituted for the expression 'both Houses of Legislature' by paragraph 3(2) of the Tamil Nadu Adaptation of Laws Order, 1987.]

and if, before the expiry of the session in which it is so placed or the next session, [the Legislative Assembly agrees]

[Substituted for the expression 'both Houses of agree' by paragraph 3(2), paragraph 3(2) of the Tamil Nadu Adaptation of Laws Order, 1987.]

in making any modification in any such rule or [the Legislative Assembly agrees]

[Substituted for the expression 'both Houses of agree' by paragraph 3(2), paragraph 3(2) of the Tamil Nadu Adaptation of Laws Order, 1987.]

that the rule should not be made, the rule shall, thereafter, have effect only in such modified form or be of no effect, as the case may be, so however, that any modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

9.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Government as occasion may require may, by order, do anything which appears to them necessary for the purpose of removing the difficulty.

(2)

Every order issued under sub-section (1) shall, as soon as possible after it is issued, be placed on the table of [the Legislative Assembly]

[Substituted for the expression 'both Houses of Legislature' by paragraph 3(2) of the Tamil Nadu Adaptation of Laws Order, 1987.]

, and, if before the expiry of the session in which it is so placed or the next session, [the Legislative Assembly agrees]

[Substituted for the expression 'both Houses of agree' by paragraph 3(2), paragraph 3(2) of the Tamil Nadu Adaptation of

Laws Order,1987.]

in making any modification in any such order or [the Legislative Assembly agrees]

[Substituted for the expression 'both Houses of agree' by paragraph 3(2) of the Tamil Nadu Adaptation of Laws Order,1987.]

that the order should not be issued, the order shall, thereafter, have effect only in such modified form or be of no effect, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that order.

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